

25AVCV01536 25AVCV01536

County: los-angeles

Division: Civil Law and Motion

Department: A14

Hearing date: 2026-06-23

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Case Number: 25AVCV01536 Hearing Date: June 23, 2026 Dept: A14

Questions for Parris v. Ervin, et al., No. 25AVCV01536

The Court has the following questions and instructions to discuss at the June 23, 2026 hearing on Plaintiff's anti-SLAPP motion.

1. Applicability of Civil Code Section 47(b). Defendants raise for the first time on reply that there is absolute immunity for the speech at issue as speech "in the initiation or course of any other proceeding authorized by law and reviewable pursuant to Chapter 2 (commencing with Section 1084) of Title 1 of Part 3 of the Code of Civil Procedure. . . ." Ordinarily it is impermissible to raise arguments for the first time on reply, but the respective burdens on anti-SLAPP motions can modify this rule. Defendants initial burden was to demonstrate that the causes of action arose from protected prong 1 activity; Defendants do not have an initial burden of proving that Plaintiff cannot prevail under prong 2. In determining whether to grant or deny a special motion to strike, the Court engages in a two-step process. ("The moving defendant's burden is to demonstrate that the act or acts of which the plaintiff complains were taken 'in furtherance of the [defendant]'s right of petition or free speech under the United States or California Constitution in connection with a public issue,' as defined in the statute. (Code Civ. Proc. § 425.16, subd. (b)(1).) If the court finds such a showing has been made, it then determines whether the plaintiff has demonstrated a probability of prevailing on the claim." (Equilon Enterprises v. Consumer Cause, Inc. (2002) 29 Cal. 4th 53, 67; see also RGC Gaslamp, LLC v. Ehmcke Sheet Metal Co. (2020) 56 Cal. App. 5th 413, 426 ("But a defendant does not have to establish that its conduct was ultimately lawful or constitutionally protected at prong one.") Thus the Court views Defendants' Section 47(b) argument as responsive to Plaintiff's argument and evidence in Opposition that Plaintiff can meet his prong 2 burden even if prong 1 is satisfied. As such, new argument on reply may be permissible, as long as Plaintiff is given a chance to respond. (RGC Gaslamp, LLC, supra, at 433.) Given the importance of the applicability of Section 47(b) and that Plaintiff has not had an opportunity to brief it, the Court will discuss with the parties at the June 23 hearing a suitable briefing schedule that permits sufficient briefing on this issue.

2. What is the "publication"? Moving Defendants characterize the "publication" of the speech at issue as the notice recall petition filed with the City. (Motion, at 1:26.) Plaintiff characterizes the publication as the reproduction of the notice of recall petition in the Antelope Valley Press. ((Chanchikyan Decl., Ex. 1.). The Complaint does not appear to draw a distinction, suggesting that both are actionable publications, or are part of the same actionable publication. (Complaint, at paras. 12-15.) Given that Elections Code Section 11022 requires that a copy of the notice of the recall petition be published in a newspaper of general circulation, does it matter which event here is the "publication" of the speech at issue?

3. Is it fatal to Defendants' Motion under Park v. Nazari (2023) 93 Cal. App. 5th 1099, 1108-1109 that Defendants' notice of motion does not identify the precise language to be stricken from the Complaint?:

"Our Supreme Court's guidance from Baral to Bonni explains that while courts may strike less than the entirety of a complaint or pleaded cause of action, the trial court is not required to take on the burden of identifying the allegations susceptible to a special motion to strike. If a defendant wants the trial court to take a surgical approach, whether in the alternative or not, the

defendant must propose where to make the incisions. This is done by identifying, in the initial motion, each numbered paragraph or sentence in the complaint that comprises a challenged claim and explaining "the claim's elements, the actions alleged to establish those elements, and wh[y] those actions are protected."

Do/can Defendants' briefs sufficiently identify the language to be stricken (see Motion, at 12:17-13:6, Reply at 3:17-23.)?

4. What exactly is the speech that Plaintiff is suing on? Both sides agree that Plaintiff is suing for the statements because Plaintiff narrows the case to the following: (1) "Parris has consistently ignored voters' voices, raising waste management fees without approval," and (2) "He's manipulated the democratic process by extending his term from 2 to 4 years without citizens voting for the change." (Am. Opp. at pp. 1–2, 6–8.)

Defendants identify other statements in the recall petition as non-defamatory in that they are, as Defendants argue, non-actionable opinion. (See Motion, at 12-13.). Plaintiff only briefly discusses some of these other statements in his Opposition, and does not appear to ground his defamation claim on these statements. The Complaint appears at times to assert that some of this speech is actionable and defamatory (See Complaint at para. 27) but again the focus is clearly on the two statements identified above. To the extent that Plaintiff continues to assert that any of the speech in the recall petition aside from the two statements identified are actionable, defamatory statements, Plaintiff should be prepared at the hearing to identify those particular statements. The Court understands that certain statements do not necessarily amount to actionable defamation but may have been included in the Complaint for context or as necessary evidentiary allegations (for instance, made in connection with establishing actual malice).